

WORKPLACE VIOLENCE PREVENTION PLAN

(WVPP) — California Labor Code § 6401.9 / SB 553

M&S LLC — Oakland

1. Responsibility

the General Manager is responsible for implementing and maintaining this Plan, and is the person to contact with questions.

2. Scope and definitions

This Plan applies to all employees at Oakland. “Workplace violence” means any act or threat of physical force, or any threat that creates a reasonable fear of harm, against an employee at work — regardless of whether it causes injury. It includes the four Cal/OSHA types: Type 1 (by a person with no legitimate business at the worksite), Type 2 (by a customer or guest), Type 3 (by a present or former employee), and Type 4 (by a person with a personal relationship to an employee). It does not include lawful self-defense.

3. Employee involvement

Employees and their representatives are involved in developing and implementing this Plan, including identifying hazards, designing training, and reviewing incidents. Employees may give input to the General Manager at any time, including anonymously.

4. Coordination with other employers

Where employees of other employers (vendors, contractors, delivery staff, temporary-agency workers) work at our site, the General Manager will coordinate on this Plan and on reporting and response procedures.

5. Reporting — no retaliation

Report any workplace-violence incident, threat, or concern immediately to the General Manager or any manager, or to law enforcement (911) in an emergency. Reports may be made verbally, in writing, or anonymously. The Company prohibits retaliation against anyone who reports a concern or participates in responding to one.

6. How we communicate with employees

The Company communicates with employees about workplace-violence matters through shift meetings, postings, and direct notice, including how to report concerns without fear of reprisal and how to obtain a free copy of this Plan.

7. Emergency response

In an active-threat or violent emergency: call 911, get yourself and others to safety, follow the site’s evacuation and shelter procedures, and alert the manager on duty. The manager will account for staff, assist responders, and arrange support for anyone affected.

8. Hazard identification, evaluation, and correction

The Company identifies and evaluates workplace-violence hazards — at Plan adoption, periodically, when a new or previously unrecognized hazard is reported, and after an incident — considering factors such as cash handling, late-night hours, working alone, guest interactions, and site layout. Identified hazards are corrected in a timely manner; interim measures are used until permanent corrections are in place.

9. Post-incident response and investigation

After any incident, the Company will provide appropriate medical care and support, investigate (interview those involved, review evidence and any video), record the incident in the Violent Incident Log, and review whether Plan or hazard corrections are needed.

10. Training

All employees are trained on this Plan when it is established, annually, when new hazards are identified, and when the Plan changes. Training covers the Plan and how to obtain a copy; how to report; the four types of workplace violence and site-specific hazards; and how to participate in the Plan. Training records are kept at least one year.

11. Recordkeeping

The Company keeps: hazard identification/evaluation/correction records (≥5 years); training records (≥1 year); and the Violent Incident Log (≥5 years). Records are available to employees and their representatives on request, consistent with law.

12. Review

The Company reviews this Plan at least annually, after any incident, and whenever a deficiency is identified, and revises it as needed.

Violent Incident Log

Complete one record for EVERY workplace-violence incident, whether or not anyone was injured. Do NOT record personal identifying information of any person involved. Retain at least 5 years.

Date and time of incident	
Location where it occurred	
Workplace-violence type (1 / 2 / 3 / 4)	
Was it a physical attack or a threat?	
Were weapons or other objects involved?	
Was it a sexual assault?	
Who committed it (stranger, customer/guest, coworker, personal relationship) — no names/PII	
Circumstances / detailed description	
Where it happened (dining room, kitchen, parking lot, etc.)	
Consequences / corrective actions (security or law enforcement contacted; actions taken)	
Person who completed this log entry (name/title)	
Date log entry completed	